IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-03
CA(CAA) No.-19/230/232/ND/2023

IN THE MATTER OF:
Doozy Farms Private Limited And S & C Enterprises Private Limited With DHN Agritech Private Limited **.... Applicant**

SECTION
U/s 230-232 **Order delivered on 21.07.2023**

CORAM:
SHRI P.S.N PRASAD,
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant :
For the Respondent :

ORDER

Matter is listed for pronouncement today. Ordered vide separate sheets.

Sd/-
(DR. BINOD KUMAR SINHA)
MEMBER (T)

Sd/-
(P.S.N PRASAD)
MEMBER (J)

IN THE NATIONAL COMPANY LAW TRIBUNAL
COURT NO. V, NEW DELHI

Item No.
CA (CAA) No.19/230/232 (ND)/2023

IN THE MATTER OF:

M/S DOOZY FARMS PRIVATE LIMITED AND S & C ENTERPRISES PRIVATE LIMITED AND DHN AGRITECH PRIVATE LIMITED

Section
Under Section 230-232

Order Delivered On: 21.07.2023

CORAM:
SHRI P.S.N PRASAD HON'BLE MEMBER (JUDICIAL)
DR. BINOD KUMAR SINHA, HON'BLE MEMBER (TECHNICAL)

ORDER

This Tribunal in exercise of its power under Rule 154 of NCLT Rules, 2016 suo motu rectifies the following typographical/clerical errors:

i. The case title and Para 4 of the order dated 05.07.2023 is to be read as follows:
The Registered Office of DHN Agritech (Applicant Company-3/Transferee Company) is situated at office 55, 2nd Floor, Lane-2, Westend Marg, Saidullajab, Near Saket Metro Station, New Delhi- 110030.

ii. Para 12(B)(a) of order dated 05.07.2023 is to be read as follows:
In relation to the Applicant Company No. 2/Transferor Company, there is 1 Preference Shareholder and since the consent affidavit of the Preference Shareholder has been placed on record, the meeting of the Preference Shareholder of the Applicant Company-2/Transferor Company is dispensed with.

iii. Para 8 of order dated 05.07.2023 is to be read as follows:
In has been stated that the Applicant Company No. 3/Transferee Company has 45 Equity Shareholders,13 Preference Shareholders and 3 Debenture Holders.

The Applicant Company No. 3 with regard to Equity Shareholders, Preference Shareholders and Debenture Holders seeks for holding a meeting of Equity Shareholders, Preference Shareholders and Debenture Holders of the of the Applicant Company No. 3, for the purpose of consideration and approval of the proposed Scheme of Arrangement for Amalgamation between the Applicant Companies.

iv. Para 12 (C)(a) of order dated 05.07.2023 is to be read as follows:

- The meeting of the Equity Shareholders of the Applicant Company-3/Transferee Company cannot be dispensed with as consent of Equity Shareholders was not obtained and Applicant Company-3 seeks for holding the meeting of Equity Shareholders. The meeting of the Equity Shareholders of the Applicant Company-3 is directed to be held at the venue, date, time and mode as decided by the Chairperson in consultation with the counsel for Applicant Companies. The quorum for the meeting will be 23 in number.
- The meeting of the Preference Shareholders of the Applicant Company-3/Transferee Company cannot be dispensed with as consent of Preference Shareholders was not obtained and Applicant Company-3 seeks for holding the meeting of Preference Shareholders. The meeting of the Preference Shareholders of the Applicant Company-3 is directed to be held at the venue, date, time and mode as decided by the Chairperson in consultation with the counsel for Applicant Companies. The quorum for the meeting will be 7 in number.
- The meeting of the Debenture Holders of the Applicant Company-3/Transferee Company cannot be dispensed with as consent of Debenture Holders was not obtained and Applicant Company-3 seeks for holding the meeting of Debenture Holders. The meeting of the Debenture Holders of the Applicant Company-3 is directed to be held at the venue, date, time and mode as decided by the Chairperson in consultation with the counsel for Applicant Companies. The quorum for the meeting will be 2 in number.

v. Para 19 of the Order dated 05.07.2023 is to be read as follows:

Mr. Rajesh Sharma, Mobile: 9312264174, Email id- rajeshsharmafca@hotmail.com is appointed as the Chairperson and Mr. Kushagra Goyal, Mobile: 9811097574, Email id- fca.kushagragoyal@gmail.com is appointed as Scrutinizer for the meeting of the Equity Shareholders, Secured Creditors and Unsecured Creditors of the Applicant Company-1, of Equity Shareholders and Unsecured Creditors of the Applicant Company-2 and Equity Shareholders, Preference Shareholders, Debenture Holders and Unsecured Creditors of the Applicant Company-3 in terms of the direction issued.

vi. Para 25 of the Order dated 05.07.2023 is to be read as follows:

Notice of this application shall also be served to the Official Liquidator, attached to High Court of Delhi.

All of the above rectifications are made and order dated 05.07.2023 is to be read with this order.

Sd/-

(DR. BINOD KUMAR SINHA)
MEMBER (TECHNICAL)

Sd/-

(SHRI P.S.N. PRASAD)
MEMBER (JUDICIAL)